

STATE OF NEW YORK

6231--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 27, 2025

Introduced by M. of A. DURSO, McDONOUGH, DeSTEFANO -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 187 of the laws of 1960 incorporating the West Islip Exempt Firemen's Benevolent Association, in relation to its purpose and the use of foreign fire insurance premium taxes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 1, 2, 3 and 7 of chapter 187 of the laws of 1960
2 incorporating the West Islip Exempt Firemen's Benevolent Association,
3 are amended to read as follows:

4 Section 1. Incorporation; membership. A [~~membership~~] not-for-profit
5 corporation by the name of "West Islip Exempt [~~Firemen's~~] Firefighter's
6 Benevolent Association" is hereby created. It shall be composed of such
7 persons eligible to membership therein as hereinafter provided as shall
8 (a) notify the secretary of the West Islip fire department in writing
9 prior to the organization meeting of such corporation hereinafter
10 provided for their desire to become members, or (b) shall attend such
11 meeting or an adjournment thereof, and also such persons so eligible as
12 may become members of such corporation pursuant to its by-laws.

13 § 2. Persons eligible to membership. All persons who are now, or have
14 been, or who hereafter shall be volunteer members of the West Islip fire
15 district fire department, or of any fire corporation in such fire
16 district, and all persons resident in such fire district or in territory
17 provided with fire protection by contract with such fire district who
18 are exempt volunteer [~~firemen~~] firefighters as defined by section [~~two~~
19 ~~hundred~~] 200 of the general municipal law, shall be eligible to member-
20 ship in the corporation hereby created; provided that any person who has
21 been expelled or removed for cause from membership in any fire company
22 or department shall not be eligible to membership in such corporation.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 Whenever a member who is not an exempt [~~fireman~~] firefighter as defined
2 by section [~~two hundred~~] 200 of the general municipal law shall remove
3 from such fire district or from territory provided with fire protection
4 as aforesaid or if the territory in which a member resides shall no
5 longer be provided with such fire protection, [~~his~~] such person's
6 membership in such corporation shall cease.

7 § 3. Purposes. The purposes of such corporation shall be [~~the mainte-~~
8 ~~nance of suitable headquarters for, and the promotion of fraternal~~
9 ~~intercourse among the members of such corporation, the relief, aid and~~
10 ~~assistance of such members and their families who are disabled or indi-~~
11 ~~gent, and the promotion of the welfare of the volunteer fire service~~
12 ~~within the West Islip fire district and territory provided with fire~~
13 ~~protection by contract with such fire district~~]: to provide relief, aid
14 and assistance to the volunteer members of such corporation who are
15 disabled, indigent or injured in the performance of their duties, and
16 their families; to promote and safeguard the welfare of the volunteer
17 members of such corporation, and their families; to maintain a suitable
18 headquarters for the members of such corporation; to provide for the
19 health and safety of the volunteer members of such corporation; to
20 include support for mental health and encourage team building skills in
21 order to strengthen the safety among the volunteers; and the promotion
22 of the volunteer fire service within the territory protected by the West
23 Islip fire district fire department.

24 § 7. Precept for payment of foreign fire insurance premium taxes. Such
25 corporation shall collect and there shall be paid to it all taxes
26 imposed by section [~~five hundred fifty three~~] 9104 of the insurance law,
27 for fire department use and benefit, upon premiums for insurance against
28 loss or damage by fire covering property situated within the territory
29 protected by the West Islip fire department, located in the town of
30 Islip, Suffolk county, New York, or within any duly organized territory
31 in which the West Islip fire department is or may be obligated to render
32 fire protection. The officer of said corporation designated by its
33 by-laws to collect and receive the aforesaid tax shall have all the
34 powers and be subject to all the provisions of the insurance law, relat-
35 ing to treasurers of fire departments. Such corporation shall also be
36 entitled to receive a share of the tax imposed by section [~~five hundred~~
37 ~~fifty four~~] 9105 of the insurance law, based upon the business written
38 in the territory with respect to which it is entitled to collect and
39 receive the tax under section [~~five hundred fifty three~~] 9104 of the
40 insurance law. Such taxes shall only be used [~~for the care and relief of~~
41 ~~disabled or indigent volunteer and exempt volunteer firemen and their~~
42 ~~families~~] by the corporation in furtherance of its purposes as set forth
43 in section three of this act.

44 § 2. This act shall take effect immediately; provided, however, that
45 the amendments to section 7 of chapter 187 of the laws of 1960 made by
46 section one of this act shall apply to taxes due on premiums received on
47 and after January 1, 2026.